

Directorate of ICT & e-Governance (DIT),
Department of Science & Technology
Block No. 2, 2nd Floor, Karmayogi Bhavan,
Sector-10A, Gandhinagar 382 010

**EXPRESSION OF INTEREST (EOI) FOR INVITING
COMPANIES FOR SETTING-UP DATA CENTER IN GUJARAT
BY AVAILING INCENTIVES OF GUJARAT IT/ ITES POLICY
(2022-27)**

Eoi No.: DIT/ ITP/ EOI/ 002 Date: 08.01.2025

DISCLAIMER

The information contained in this Expression of Interest (Eoi) document or subsequently provided to Bidder(s), whether verbally or in documentary or any other form by or on behalf of the Directorate of ICT & e-Governance (DIT) /DST, Government of Gujarat or any of their employees or consultants, is provided to Bidder(s) on the terms and conditions set out in this Eoi and such other terms and conditions subject to which such information is provided.

The purpose of this Eoi is to provide interested parties with information that may be useful to them in eliciting their offers (the “Proposal”) pursuant to this Eoi. This Eoi includes statements, which reflect various assumptions and assessments arrived at by Directorate of ICT & e-Governance, in relation to the Eoi. Such assumptions, assessments and statements do not purport to contain all the information that each Bidder may require. This Eoi may not be appropriate for all persons, and it is not possible for DIT, its employees, or Consultants to consider the investment objectives, financial situation and particular need of each party who reads or uses this Eoi. The assumptions, assessments, statements, and information contained in this Eoi, may not be complete, accurate, adequate, or correct. Each interested agency should, therefore, conduct its own surveys and analysis and should check the accuracy, adequacy, correctness, reliability and completeness of the assumptions, assessments, statements, and information contained in this Eoi and obtain independent advice from appropriate sources before filling up the Eoi. Any deviation in the specification or proposed solutions will be deemed as incapability of the respective Agency and shall not be considered for final evaluation process.

Information provided in this document to the Bidder(s) is on a wide range of matters, some of which depends upon interpretation of law. The information given is not an exhaustive account of statutory requirements and should not be regarded as a complete or authoritative statement of law. The TENDERER accepts no responsibility for the accuracy or otherwise for any interpretation or opinion on law expressed herein.

Directorate of ICT & e-Governance, its employees and advisors make no representation or warranty and shall have no liability to any person, including any Applicant or agency under any law, statute, rules or regulations or tort, principles of restitution or unjust enrichment or otherwise for any loss, damages, cost or expense which may arise from or be incurred or suffered on account of anything contained in this Eoi or otherwise, including the accuracy, adequacy, correctness, completeness, delay or reliability of the Eoi and any assessment, assumption, statement or information contained therein or deemed to form part of this Eoi or arising in any way during the Bidding process.

EXPRESSION OF INTEREST (EOI) FOR INVITING COMPANIES FOR SETTING-UP DATA CENTER IN GUJARAT BY AVAILING INCENTIVES OF GUJARAT IT/ ITES POLICY (2022-27)

Directorate of ICT & e-Governance, Department of Science & Technology, *Government of Gujarat invites Companies for setting-up Data Center in Gujarat by availing incentives of Gujarat IT/ ITeS Policy (2022-27)*. For overview of the Eoi and suggested response formats, please refer to respective following sections of this Eoi.

Interested entities may submit their proposal for this Expression of Interest online, with all the necessary documents duly signed by an authorized signatory on or before last date for submission of Eoi response.

Instruction to the Interested Entities for proposal submission:

Interested Entities who wish to participate in this Eoi will have to register on <https://www.nprocure.com/>. Further Interested Entities who wish to participate in online Eoi will have to procure Digital Certificate as per Information Technology Act 2000 using which they can sign their electronic Eoi documents. Interested Entities can procure the same from (n) code solutions – a division of GNFC Ltd., or any other bidder licensed by Controller of Certifying Authority, Govt. of India. Interested Entities who already have a valid Digital Certificate need not procure a new Digital Certificate.

In case Interested Entities need any clarification regarding online participation, they can contact “(n) Code solutions – A division GNFC Ltd.” 403, GNFC Info Tower, Bodakdev – 380054, Gujarat (India). Tel: +91-26857316/17, Email: nprocure@ncode.in; nprocuregift@ncode.in, Website: <https://tender.nprocure.com>, Toll Free: 1800-233-1010 (Ext. 501 & 512).

Eoi documents are available only in electronic format which Interested Entities can download free of cost from the website <https://directorit.gujarat.gov.in/> and <https://www.nprocure.com/>. Interested Entities shall upload their proposal only at <https://www.nprocure.com/>. The entities should submit their proposal for this Eoi on or before the last date for submission of Eoi response along with all the relevant information and documents. In case of any clarifications required, please contact on email ID dd-incentive-dit@gujarat.gov.in or ad-incentive-dit@gujarat.gov.in quoting Eoi No. in the subject line.

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1 GENERAL TERMS

1.1 OBJECTIVES OF THIS EXPRESSION OF INTEREST

The primary objective of this Expression of Interest (EoI) is to actively seek expression of interest from companies for establishing Data Center in the state, by availing Gujarat IT/ITeS policy incentives.

This initiative is aimed at strengthening the digital infrastructure that centralizes computing and networking equipment to cater the growing demands of internet connectivity, data security, and emerging technologies such as 5G, AI/ML, IoT, Blockchain, applications and other digital services.

The government has undertaken significant initiatives to bolster data center infrastructure in the state, aiming to drive development activities and fortify the digital ecosystem. Further, the Government shall provide fiscal support in the following way. The detailed incentives are mentioned in the Gujarat IT/ ITeS Policy (2022-27):

S. No.	Incentive category	Description of support
1	CAPEX support	One-time CAPEX support of up to 30 per cent of the eligible CAPEX expenditure subject to a maximum ceiling of INR 50 Cr for Category I units and INR 200 Cr for Category II units.
2	OPEX support	One-time OPEX support of 15 per cent of the eligible OPEX expenditure subject to a maximum ceiling of INR 40 Cr. However, the total expenditure on Bandwidth and Cloud Rental shall be capped up to 35% of the eligible OPEX or INR 7 crore per annum for Category I units and INR 14 crore for Category II units per annum.
3	Special Incentives	i. Interest Assistance on term loan up to 7% of the principal loan amount. ii. 100% reimbursement of Electricity Duty iii. Employment Generation Incentive at 50% of CTC up to INR 60,000 iv. Up to 100% reimbursement of employer's statutory EPF contributions (Atmanirbhar Gujarat Rojgar Sahay).

Note: Companies planning to establish Green Data Centers or using green power for certain operations shall be eligible to receive incentives related to the use of green power under the Gujarat Renewable Energy Policy 2023, as applicable.

Eligibility Criteria for Availing Incentive under Gujarat IT/ITeS Policy (2022-27) for Data Centers

'Data Center' means a facility that centralizes computing and networking equipment to collect, store, process and disseminate a large amount of data and applications. Incentives will only be provided for the setting up of tier three or above Data Centers in the state subject to:

- A. A minimum built-up area of 4,000 sq. ft.
- B. A minimum of 150 racks, or IT power consumption of at least 900 KW in racks, or 200,000 processor cores.

Entities interested in submitting their expression of interest are requested to carefully read the Gujarat IT/ITeS Policy (2022-27), Implementation Guidelines for Gujarat IT/ITeS Policy (2022-27) & Modification and Addendum to the Gujarat IT/ITeS Policy (2022-27) to know the incentives offered for the entities. The link of the of the above referred documents is as given below:

1. <https://dstpolicy.gujarat.gov.in/public/assets/itpolicy/document/GR-IT-Policy-2022-2027.pdf>
2. https://dstpolicy.gujarat.gov.in/public/assets/itpolicy/document/Implementation-Guidelines_IT_ITeS_Policy_2022-27.pdf
3. <https://dstpolicy.gujarat.gov.in/viewPublicDocument/Nw==>

1.2 EOI ISSUING AUTHORITY

This Expression of Interest (Eoi) is issued by Directorate of ICT & e-Governance (DIT), Department of Science & Technology, Government of Gujarat.

#	Item	Description
1	Eoi Title	Expression of Interest (Eoi) for inviting Companies for setting-up data center in Gujarat by availing incentives of Gujarat IT/ ITeS Policy (2022-27)
2	Eoi issuing Authority Details:	
2.1	Department	Directorate of ICT & e-Governance (DIT), Department of Science & Technology, Government of Gujarat Block No. 2, 2nd Floor, C & D Wing, Karmayogi Bhavan Sector - 10 A, Gandhinagar - 382010 +91 79 23259222

2.2	Contact Person	Deputy Director (IT) Directorate of ICT & e-Governance Phone: 079-23258397 Email id: dd-incentive-dit@gujarat.gov.in
2.3	Contact Person (Alternate)	Assistant Director (IT) Directorate of ICT & e-Governance Phone: 079-23259325 Email id: ad-incentive-dit@gujarat.gov.in
3	Website	https://directorit.gujarat.gov.in/
4	Mode of submitting proposal	Online
5	Eol Document Available at	https://tender.nprocure.com , https://directorit.gujarat.gov.in/
4	Participant's Conference link	https://cmguij.webex.com/cmguij/j.php?MTID=m0178700e7e02ccae5ef16a723a91b511

1.3 IMPORTANT DATES

#	Description	Date & Time
1	Release of Expression of Interest (Eol)	08/01/2025, 15:00
2	Meeting on Clarifications	16/01/2025, 13:00
3	Last Date for submission of queries	17/01/2025, 15:00
4	Last Date for Submission of Eol Response	24/03/2025, 15:00
5	Opening of Eol Responses	25/03/2025, 15:00

1.4 PARTICIPANT'S CONFERENCE

Directorate of ICT & e-Governance (DIT) will schedule a meeting through Virtual Conference. The meeting is tentatively scheduled as per the schedule given in Section

1.3 of this EoI. The purpose of the meeting is to provide participants with any clarifications regarding the EoI. It will also provide each participant with an opportunity to seek clarifications regarding any aspect of the EoI.

2 BACKGROUND

2.1 ABOUT DIRECTORATE OF ICT & E-GOVERNANCE (DIT)

Established in 2016, the Directorate of ICT & eGovernance, known as "DIT," has been a cornerstone in advancing ICT endeavors within Gujarat State. Recognized as a trailblazer in harnessing information and communication technology (ICT) for improved governance, DIT has spearheaded numerous e-Governance initiatives across Gujarat. Serving as a pivotal hub for the implementation of IT/ITeS and Startup/Innovation Policies, DIT offers crucial technical assistance to government departments, facilitating the formulation of impactful policies and fostering transparency, efficiency, and accountability in governmental operations through e-Governance. With a multifaceted role encompassing project coordination, research and development, capacity building, and the establishment of the Gujarat State Data Centre (GSDC), DIT remains steadfast in its commitment to propel Gujarat towards a digitally empowered future.

2.2 GUJARAT IT/ ITeS POLICY (2022-27)

The Gujarat IT/ITeS Policy (2022-27), launched in February 2022, aims to revolutionize the IT landscape of Gujarat, positioning it as a frontrunner in the Information Technology sector. This policy is designed with the overarching goal of fostering the development and improvement of digital infrastructure in the state. To promote the development activities in the state, the Government shall facilitate the setting up of a Data Center by way of Capex Support, Opex Support and Special Incentives.

Entities interested in submitting their expression of interest are requested to carefully review section 2.7.8 of the Modification and Addendum to the Gujarat IT/ITeS Policy (2022-27) dated 11.10.2024 and Gujarat IT/ITeS Policy (2022-27), which focuses on 'Data Centers' policy intervention, to gain a comprehensive understanding of the objective.

Further, entities are requested to carefully read the Gujarat IT/ITeS Policy (2022-27), Implementation Guidelines for Gujarat IT/ITeS Policy (2022-27) & Modification and Addendum to the Gujarat IT/ITeS Policy (2022-27) to get holistic offerings and incentives of Gujarat IT/ITeS Policy (2022-27). The link of the of the above referred documents is as given below:

1. <https://dstpolicy.gujarat.gov.in/public/assets/itpolicy/document/GR-IT-Policy-2022-2027.pdf>
2. https://dstpolicy.gujarat.gov.in/public/assets/itpolicy/document/Implementation-Guidelines_IT_ITeS_Policy_2022-27.pdf

3. <https://dstpolicy.gujarat.gov.in/viewPublicDocument/Nw==>

3 LANGUAGE OF PROPOSALS

The proposal and all correspondence and documents shall be written in English.

4 AREA OF OPERATION

The National & International companies who are operating in the business of establishing, operating Data Centers are invited to submit their proposal against this EoI.

5 PARTICIPATION CRITERIA

#	Criteria	Description	Proof Document Required
1	Legal Entity	For Indian Companies: i. Registered under Companies Act/ LLP Act/ Partnership Act/ or other relevant Acts in India and in existence for at least 5 years. ii. Registered GST number, Income Tax PAN, and active operations in India. For International Companies: i. Registered under the relevant laws of the country of origin and in existence for at least 5 years. ii. Registered office or operational presence in India, or intent to establish one within a stipulated timeframe.	Indian Companies: i. Copy of Certification of Incorporation issued by competent authority/ Registration Certificate. ii. Copy of PAN card. iii. Copy of GST registration. International Companies: i. Certificate of Incorporation or equivalent. ii. Proof of operational presence in India (if applicable). iii. Declaration of intent to establish operations in India (if not present).
2	Details of the Organization	The entity must include a general background of the respondent organization along with other details	Form I and Form I-A

		of the organization as per the format provided in the EoI.	
3	Area of Operations	The core business of the entity should be in the IT/ITeS domain.	Valid documents supporting the said clause.
4	Blacklisting	The entity should not have been blacklisted by any state/ central government organization in India. Self-declaration to that effect should be submitted along with the proposal.	Self-Declaration as per the Form II

6 SUBMISSION REQUIREMENTS

Interested organizations must submit:

- A detailed proposal outlining their approach to establishing and operating the Data Center in Gujarat.
- Financial and Technical capability statements.
- Company profile, including relevant experience in establishing & operating Data Center.
- Plan for usage and adoption of Green Power energy for establishing and operating the Data Center.
- Proposed project timelines and milestones.
- Details of partnerships or consortia (if applicable).
- Any other relevant documentation

7 TERMS AND CONDITIONS

- A. The Authority shall be entitled to reject the EoI proposal, in the event, inter alia:
 - a. the Entity is found to have made a false or misleading representation or statement in the EoI response or under any document prepared, submitted and/or executed by the Entity in relation to the same; or
 - b. the Entity is found to be ineligible to submit the proposal under the terms of this EoI or as per Applicable Laws; or
 - c. any other non-compliance with the terms and provisions of the Process or the EoI proposal submitted by the Entity.
- B. During the evaluation of EoI, the Authority may, at its discretion, request a participant for further clarifications and/or information. The request for clarification and the response thereto shall only be in writing; the participant shall be required to reply to the clarification within a period as specified by the Authority.
- C. In response to this EoI, single proposal should be submitted by the entity. Multiple proposals response by single entity will not be accepted.

- D. The Entity acknowledges that any ambiguities, inconsistencies, or misinterpretations arising from the language or terms of the EoI shall be resolved in favor of the interpretation that is most favorable to the issuing authority. The Entity further agrees to seek clarification promptly in the event of any uncertainty regarding the EoI requirements or terms.
- E. This EoI is not an offer and is issued with no commitment. DIT reserves the right to withdraw the EoI and change or vary any part thereof at any stage.
- F. DIT is not restricted in its rights to use or disclose any or all the information contained in the proposal.
- G. DIT also reserves the right to disqualify any participant, should it be so necessary at any stage.
- H. The response to the Participation Criteria shall be prepared in accordance with the requirements specified in this EoI and in the format prescribed in this document for each of the above-mentioned eligibility criteria.
- I. Proposals must be direct, concise, and complete. All information not directly relevant to this EoI should be omitted.

8 RESPONSE FORMATS

8.1 FORM I- DETAILS OF THE ENTITY AND EXISTING DATA CENTRE DETAILS

Details of the Entity		
#	Description	Details*
1	Name of the organization	
2	Nature of business in India/Other Country	
3	Company Profile (Maximum 400 words)	
4	Address of Headquarter	
5	Address of Registered Office in India/Other Country	
6	Date of Incorporation, Registrar of Companies (ROC) location	
7	Income Tax Number (PAN)	
8	Goods and Services Tax Number (GST)	
9	Annual Turnover a) 2021-22 b) 2022-23 c) 2023-24	Amount (INR)
10	Provide details of all Data Centers established by the Entity, both within India and internationally: a) Country: b) State: c) City/ District:	
11	Existing Data Center Capacity	Total Capacity (MW): Or Total Processor Core:
12	Manpower in Data Centers (Total workforce employed in data centers (technical and non-technical)).	
13	Types and specifications of cooling systems installed (e.g., liquid cooling, chilled water systems).	
14	Carbon Footprint and Green Initiatives (Details of any sustainability measures, including carbon footprint reduction strategies)	

15	Certifications and Compliance (- Uptime Institute Tier Certifications (I-IV). - ISO certifications (e.g., ISO 27001))	
16	Risk & Mitigation in previous projects.	If Yes (Please provide relevant details)
17	Disaster Recovery and Backup Mechanisms (Details of disaster recovery setups and backup strategies in existing data centers)	
18	Partnerships and Alliances (Provide details of partnerships with technology providers, vendors, or consultants)	
19	Details of Contact person for this Eol: a) Name: b) Designation: c) Email Id: d) Tel No. /Mobile No: e) Email ID:	
20	Other relevant information (if any)	

*Specify "NA" wherever not applicable

8.2 FORM I(A): PROPOSED DETAILS

#	Field	Description*
1	Proposal Type	New / Expansion
2	Proposed Investment Details: a) Minimum racks. b) Minimum power consumption (MW). c) Minimum area (sq. ft.). d) Other relevant specifics.	
3	Usage of Asset Percentage for self-Utilization	
4	Individual / Partnership Investment	
5	Data Center Tier Level	
6	Adoption of any Renewable Energy (Indicate adoption of renewable energy sources (solar, wind, etc.), along with details if applicable)	
7	Proposed Employment (Number of direct jobs expected to be created)	
8	Proposed Project Location	Specific location(s) within Gujarat where the Data Center will be established
9	Expected Date for Start of Operations	Proposed commencement date (MM/YYYY)
10	Scalability and Future Expansion Plans (Specify scalability provisions and any future expansion strategies)	
11	Proposed Power Sources and Backup Plans (Specify power sourcing strategies (grid, renewable, etc.) and backup plans (e.g., DG sets, UPS))	
12	Remarks	Any additional information or unique aspects of the project

*Specify "NA" wherever not applicable

8.3 FORM II (TO BE FILLED BY ENTITIES)

Declaration Letter

Submission on Organization's letter head.

Date: <<dd-mm-yyyy>>

To,

The Director

Directorate of ICT & e-Governance (DIT),
Department of Science & Technology
Block No. 2, 2nd Floor, Karmayogi Bhavan,
Sector-10A, Gandhinagar 382 010

Subject: DECLARATION OF NOT BANNED/ BLACKLISTED/ DEBARRED

Dear Sir,

With reference to the EoI "<<EoI Name>>", I, undersigned <<Name of Signatory>>, in the capacity of <<Designation of Signatory>> certify that, our organization/ entity <<Name of the respondent>> is not banned or blacklisted or debarred by any Central/State Government Authority/Institution in India or any other country.

Signature: _____

Name: _____

Designation: _____

Name of the Organization/ Entity: _____

Date: ____ / ____ / ____.

Place: _____.

8.4 FORM III (TO BE FILLED BY ENTITIES)

Submission on Organization's letter head.

I/We, _____, residing at _____ in capacity of _____ M/s. _____ hereby solemnly affirm that

All Instructions & Terms and Conditions laid down on all the pages of the EoI, have been read carefully and understood properly by me/us which are completely acceptable to me/us, and I/We agree to abide by the same.

I / We have submitted the Certificates / Documents as required for this EoI. All the Certificates/ Documents/ Information are valid and current as on date and have not been withdrawn/ cancelled by the issuing authority.

It is clearly and distinctly understood by me/us that the proposal is liable to be rejected if on scrutiny at any time, any of the required Certificates/ Documents/ Information is/ are found to be invalid/ wrong/ incorrect/ misleading/ fabricated/ expired or having any defect.

I/ We also understand that failure to produce the documents in "Prescribed Performa" (wherever applicable) as well as failure to give requisite information in the prescribed Performa may result into rejection of the proposal for the EoI.

I / We confirm that I/ We have meticulously filled in, checked, and verified the enclosed documents/ certificates/ information etc. from every aspect.

All the submitted documents of the proposal against the issued EoI have been physically signed & stamped by the authorized signatory.

In case of breach of any EoI terms and conditions or deviation from specification other than already specified as mentioned above, the decision of the EoI issuing authority for disqualification will be accepted by us.

Whatever stated above is true and correct to the best of my/our knowledge and belief.

Date:
Place:

Stamp & Sign of the Authorized Signatory